

June 12, 2026, Probate Tentative Rulings

1. P14-15643 In the Matter of Christopher Joshua Howie

No appearances are required. The petition for termination of the conservatorship of the estate, waiver of final accounting, and petition for allowance of attorney fees is granted as prayed. A proposed order has been submitted.

2. PR0000188 In the Matter of Todd Alan Goodin

No appearances are required. The Court is in receipt of the notice of death of the Conservatee. On its own motion, the Court continues this matter to September 11, 2026, at 9:00 a.m., in Department 6. Conservator is directed to file and serve a final accounting prior to the continued court date.

3. PR0000193 In the Matter of Johnathan Pattee

Appearances are required. The parties shall be prepared to update the Court on the status of this conservatorship and the placement of Conservatee.

4. PR0000360 In the Matter of Spencer Logan Edward Morris

No appearances are required. The Court continues this matter to September 11, 2026, at 9:00 a.m., in Department 6. Guardians have not properly noticed the March 24, 2026, accounting for hearing. Guardians shall properly notice the motion and provide proof of service of notice prior to the continued court date.

5. PR0000497 In the Matter of Timothy Jordan

No appearances are required. The petition for final distribution is granted as prayed. A proposed order has been submitted.

6. PR0000659 In the Matter of Ian Fredrick Ayton

No appearances are required. The petition for attorney fees filed by Counsel Keene is granted as prayed. Counsel shall submit a proposed order.

7. PR0000871 In the Matter of Billie Dean Nasca Muir

Appearances are required. Lucia Muir shall show cause why this matter should not be dismissed and/or sanctions issued for her failure to file proof of publication and proof of service of the notice to administer as ordered by this Court on October 17, 2025.

8. PR0000957 In the Matter of Irene Jenkins

Appearances are required in connection with the petition to appoint a conservator of the person and estate. No final report has been received from counsel for the Conservatee as previously requested. If there is no objection, the Court is inclined to grant the petition for conservatorship of the person and estate as follows: Laura Brownell is appointed as Conservator. Bond is set at \$500,000.00. Letters shall issue once proof of bond is provided to the Court. Conservator shall file an inventory and appraisal within 90 days. The Court investigation fee is waived. The Court sets the following future dates in Department 6:

Review Hearing regarding Inventory and Appraisal: September 11, 2026, at 9:00 a.m.
Annual Review: June 11, 2027, at 9:00 a.m.
Accounting: June 11, 2027, at 9:00 a.m.

9. PR0001023 In the Matter of Joceyline Rose Guerrero

Appearances are required. The Court is favorably inclined to grant the petition for expedited approval of compromise of minor's claim.

10. PR0001025 In the Matter of Mark Sealander

No appearances are required. The request of Petitioner Mark Sealander for a preliminary injunction to enjoin the sale of real property is denied.

Petitioner seeks a preliminary injunction to prevent Respondent Martha Sealander from selling the residence located at 136 Orchard Street, Nevada City. This asset is a trust asset held by the Sealander Family Living Trust.

“The granting or denial of a preliminary injunction does not amount to an adjudication of the ultimate rights in controversy. It merely determines that the court, balancing the respective equities of the parties, concludes that, pending a trial on the merits, the defendant should or that he should not be restrained from exercising the right claimed by him.” *Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528. A preliminary injunction must not issue, “unless it is reasonably probable that the moving party will prevail on the merits.” *San Francisco Newspaper Printing Co., Inc. v. Supt. Ct.* (1985) 170 Cal. App. 3d 438, 442.

At bar, “Petitioner, according to his knowledge and belief, asserts that [Respondent/Co-Trustee] Melinda [Sealander] is unduly influencing [Respondent/Settlor/Co-Trustee] Martha [Sealander], who lacks capacity to make estate planning documents, to sell the Orchard Property, which will benefit Melinda and eliminate Petitioner's beneficial share of the Trust.” 4/6/26 Pet. Br. 5:12-14. The Court is not persuaded.

The Court has reviewed the record as a whole including evidence submitted by Petitioner and Respondents. On the record presented, there is no reasonable probability Petitioner will prevail on the merits of his claims, including his claim that Martha Sealander lacked or lacks capacity to make estate planning documents or his claim that Melinda Sealander has unduly influenced Martha Sealander. In addition, Martha Sealander is alive, the trust remains revocable and Petitioner's interest has yet to vest. Petitioner, thus, has the right to dispose of trust assets as she wishes including the right to sell the property at issue. *See Babbitt v. Superior Court* (2016) 246 Cal. App. 4th 1135, 1145 (Ordinarily, “[b]ecause assets held in a revocable trust essentially belong to the settlor, the settlor may dispose of the trust's assets and effectively eliminate the beneficiaries' interest altogether ‘with no need to justify or explain’ his or her actions.”) The preliminary injunction is denied and the temporary restraining order is dissolved.

Turning to the remaining issues in the Petitioner's April 6, 2026, Petition, the Court is favorably inclined to order the parties to attend mediation, with costs of the same to be